

Sole Source (Including Brand Name) Justification - Simplified Procedures for Certain Commercial Items

NOTE: If a Justification was approved for the preceding acquisition, a copy of the approved Justification for the predecessor action must be included in the staff package for approval of the instant Justification. This applies to Justification staff packages that are submitted for review and approval at a level above the contracting officer. The predecessor Justification will be used as a reference document by the approving official.

Is this a new or amended J&A Document? ☒ New ☐ Amended (Prior to Award Only!)

Is this a Bridge Action as defined in the [AF Bridge Action Reduction Plan](#)? ☐ Yes ☒ No

Funding level for this acquisition: ☐ >SAT and ≤ \$750K ☒ > \$750K and ≤ \$15M

Contracting Activity: AFTC/PZIOAB, Contracting Officer Gretchen Tubolino

Purchase Request / Local ID Number: N/A

Program / Project (and PE, if applicable): BOSS Systems Annual Support

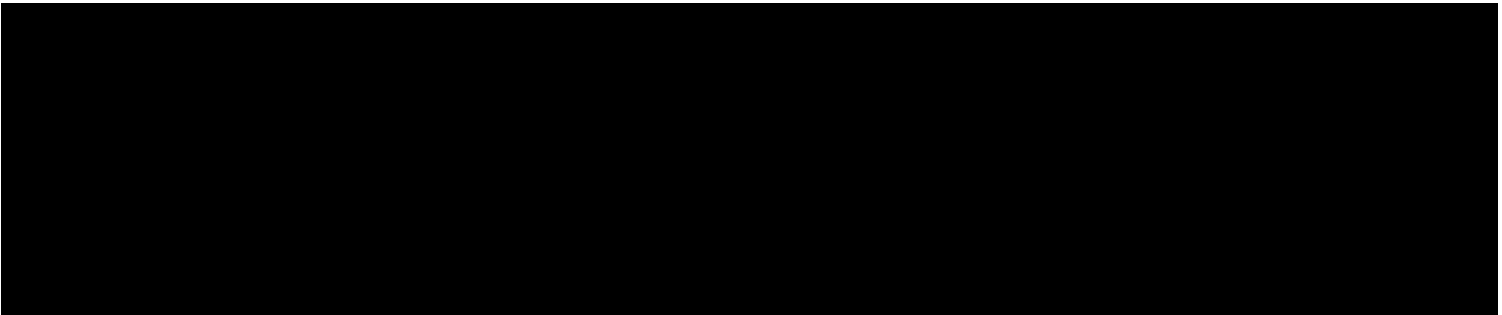
Program Type (PEO or Other Contracting): Other Contracting

Authority: ☒ DAFFARS 5313.501 - 10 U.S.C. 3572, Implementation of Simplified Acquisition Procedures (41 U.S.C. 1901)

☐ DAFFARS 5313.501 - 10 U.S.C. 3403, Special Emergency Procurement Authority (41 U.S.C. 1903)

Estimated Contract Cost (including options): [REDACTED] **Justification Type:** ☒ Class ☐ Individual

COORDINATION ([DAFFARS 5306.304\(a\)](#))



[APPROVAL \(DAFFARS 5306.304\(a\)\)](#)

Date	Competition Advocate [Official Signature Block]	Signature
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I. Contracting Activity.

The Contracting Activity is the Operational Contracting Flight, AFTC/PZIOA, Eglin AFB, FL 32542-6862. The Procuring Contracting Officer is Ms. Gretchen Tubolin [REDACTED]. This is a Sole Sources Justification. The Purchase Request number is TBD.

II. Nature and/or description of the action being processed.

This requirement will provide equipment through a firm-fixed contract with CURTISS-WRIGHT Defense Solutions (CWDS), INC. Period of performance for this contract will be ninety (90) days ARO.

III. Description of supplies/services required to meet agency needs.

This is a requirement for the Battlefield Operations Support System (BOSS) annual support and upgrades. This contract action is to cover twenty-two (22) currently owned BOSS systems (valued average \$10,722.30 each). The warranty for System ID# TCG0904, TCG0905, TCG0906, TCG0991, TCG0992, TCG0993, TCG0995, TCG0996, TCG0997, TCG0998, TCG1147, TCG1156, TCG1157, TCG1158, TCG1159, TCG1160, TCG1161, TCG1162, TCG1163, TCG1166, TCG1243, and TCG1271 expire March 31, 2026. The proposed Gold Product Support Plan will synchronize all systems and provide for product support, extended warranty for hardware and software, and software updates for a one-year period. Period of performance for this contract will be ninety (90) days ARO.

The BOSS provides a comprehensive set of tools for creating and managing test scenarios. This simulator can accurately sensor platforms recreate the multi-TADIL (Tactical Digital Information Link) network traffic representing multiple Command and Control (C²) sensor platforms. Functions are provided for surveillance, command and control, and Electronic Warfare (EW) activities. The simulator contains a flexible test control mechanism and provides operator interaction for a wide variety of tactical transactions. The simulator provides the capability to define multiple discrete test cases that may be assembled to create complex scenarios. TADIL messages may be spawned by the activity of simulated track object or directly scripted via operator dialogs. To facilitate host integration, BOSS may be used as a transaction simulator that can simulate the same interface to which the target platform would connect. This provides an end-to-end capability to verify system operation prior to beginning integration. The simulator has a robust User Interface with scripting, editing, recording, and playback capability.

The 46th Test Squadron (46 TS) and the Datalinks Test Lab (DTL) are involved with testing Link 16, the NATO Tactical Datalink of choice, on a variety of USAF and allied platforms, to include the F-15, F-16, E-3 AWACS, E-8 JSTARS, A-10, and B-2. Link 16 messages provide the pilot with complete situational awareness through cockpit displays of the entire battlespace and enable C² platforms to control that battlespace. Since 2003, the 46 TS has purchased twenty-three (23) BOSSs, on nine (9) separate Air Force contracts with CWDS. The BOSS test tool has become indispensable for Link 16 integration testing, and with the significant increase in testing at deployed locations over the past twelve (12) months.

IV. Statutory authority permitting other than full and open competition.

DAFFARS 5313.501 - 10 U.S.C. 3572, Implementation of Simplified Acquisition Procedures (41 U.S.C. 1901

V. Demonstration that the contractor's unique qualifications or nature of the acquisition requires the use of the authority cited above (applicability of authority).

FAR 8.405-6 requires an ordering activity to justify its actions when restricting consideration of schedule contractors to fewer than required in FAR 8.405-1 or 8.405-2.

FAR 8.405-6(a)(1)(i)(B), "Only one source is capable of responding due to the unique or specialized nature of the work". TCG is the only commercial manufacturer of BOSS that can offer support and upgrades. CWDS is a small business and the only manufacturer with the unique qualifications required to meet all the Government's requirements and time frames.

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This system is well understood by current personnel and meets all government requirements for Link 16 testing. Because of its varied options and capabilities, there is a significant learning curve for test engineers to master the operation of BOSS. Nevertheless, once mastered, this is the only test tool capable of satisfying all Link 16 testing requirements, particularly while at deployed test locations. There are numerous other data link test tools available within Eglin's DTL, but when a test engineer is testing at a remote site, he needs testing capabilities within a single compact test tool. The BOSS is a highly specialized piece of test equipment designed, developed, and delivered by CWDS to operate with Link 16 terminals to support datalink testing. CWDS has detailed technical knowledge of the BOSS operation and its software and meets all the technical requirements for this acquisition. The 46 TS actively reviews data and catalogs to preclude the necessity for sole source acquisitions. The BOSS, with its associated hardware and software is CWDS proprietary and they are the only manufacturer with the unique qualifications required to support current MIL-STD datalinks testing within the Government's required schedule. CWDS built BOSS and is the only manufacturer that is fully capable of providing timely and proficient support for the BOSS.

46 TS/TGBC believes that award to any other source would also result in unacceptable delays in fulfilling the Air Force's requirement. TGBC can meet its requirements with the proven product that is currently available. If a competitive procurement were to take place to develop this instrument, the government estimates that two to three years of engineering work would need to be performed as this product is not readily available from any other source. This item is already commercially available and listed on a GSA Schedule contract. Additionally, competing this requirement will cause unacceptable delays due to the test engineers having to learn how to use a new test tool, as the BOSS is and has been the test tool of choice for over ten years in Eglin's DTL. These delays would impact the mission due to the need for this product within ninety (90) days delivery time frame. Any delay in the acquisition process would result in the loss of test capability and would not allow TGBC to perform unique tests that would further improve mission capabilities of the Link 16 weapon system.

There is limited competition and no other supplies or services that will satisfy agency requirements, the use of a limited competition description is essential as this purchase is essential for improving the fidelity of the Datalinks Test Lab at Eglin AFB. Currently, no other vendor has been identified as being interested in manufacturing an item comparable to the one manufactured by CURTISS-WRIGHT DS, INC. Accordingly, CWDS is the only firm capable of providing the item described in Section III without the U. S. Air Force experiencing substantial delays in fulfilling its requirements.

VI. Description of efforts made to ensure that offers are solicited from as many potential sources as practicable.

The commercial market was surveyed by both the customer and AFTC/PZIOA. The search revealed that CURTISS-WRIGHT DS, INC. is currently the only company capable of providing this Annual Support Plan for the BOSS system.

VII. Determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

The Contracting Officer anticipates the cost to the Government is to be fair and reasonable. The proposal will be evaluated by the Government's technical representative prior to award.

VIII. Description of the market research conducted and the results, or a statement of the reasons market research was not conducted.

In accordance with FAR Part 10, market research was conducted through various internet searches. Market research of other manufacturers was performed, and it was determined that CWDS is the only manufacturer of the BOSS. The customer made inquiries to different vendors, including Northrop Grumman Corporation, 9326 Spectrum Center Blvd., San Diego, CA 92123 and Advanced Simulation Technology, Inc., 500A Hutmar Park Drive, Herndon, VA, 20170. The customer also conducted market research in GSA Advantage for other similar product schedule holders, and none were found. In addition, the customer made an extensive search of the internet revealing no other sources capable of meeting all the requirements in one compact test tool. No other vendor can use the existing BOSS software and hardware and accept BOSS software updates in a timely fashion. CWDS proprietary software is used for BOSS functionality. We will continue to perform market research for future requirements. In addition, market research in GSA Advantage for other similar product schedule holders and the internet was conducted yielding no results. Furthermore, examination of the acquisition

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history and experience with the marketplace under previous acquisitions of ten BOSSs purchased on different Air Force contracts with CWDS, as well as previous market research conducted during these purchases, provide a high level of confidence that no other qualified sources exist. In addition, CWDS is currently the only practicable firm capable of providing the supplies described in Section III above without the U.S. Air Force experiencing substantial duplication of cost that could not be expected to be recovered through open competition and unacceptable delays in fulfilling its requirements since they have already provided government estimates that were attained during initial market research. While other companies make Link 16 test tools, they do not use BOSS operational hardware or software as required for a BOSS. CWDS is the sole source manufacturer with unique qualifications required to provide timely and proficient support for the BOSS. They are the only manufacturer with unique qualifications required to complete the task.

IX. Any other facts supporting the use of Other Than Full and Open Competition.

None.

X. List of any sources that expressed, in writing, an interest in the acquisition.

None.

XI. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before making subsequent acquisitions for the supplies or services required.

No actions are planned. CURTISS-WRIGHT DS, INC. is currently the only company capable of providing this Annual Support Plan.

XII. Certification by the Contracting Officer.

As evidenced by my signature above, I have determined this document to be both accurate and complete to the best of my knowledge and belief.

XIII. Certification by the technical/requirements personnel.

As evidenced by my (our) signature(s) above, I (we) certify that any supporting data contained herein, which is my (our) responsibility, is both accurate and complete.

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Specific Guidance for Completing this Template

I. Contracting Activity. ([FAR 6.303-2\(b\)\(1\)](#))

Fully identify the contracting agency and organizational activity responsible for the proposed contracting action.

II. Nature and/or description of the action being processed. ([FAR 6.303-2\(b\)\(2\)](#))

State whether the action will be awarded as a new contract or by modification to an existing contract (identify contract number) and identify the type contract planned ([FAR 12.207](#) and [DFARS 212.207](#)).

An individual Justification cannot be used to support more than one contract irrespective of the quantities or the dollar value stated therein. If a proposed contract will contain unpriced options (including NTE prices), those options must be supported by a separate Justification prior to option exercise or the Justification supporting the basic contract must be a Class Justification. For Class Justification situations (covers more than one contract) where the number of contracts in the class can be identified: (1) Provide a brief general description of actions; (2) identify the supplies and services that are being acquired; and (3) for each contract in the class identify the contractor, estimated value, type of contract and rationale for contract length, and estimated award date. Where the same information applies to more than one contract within the class, it need only be stated one time.

III. Description of the supplies/services required to meet agency needs. ([FAR 6.303-2\(b\)\(3\)](#))

Specifically describe the supplies and/or services to be acquired, the total estimated value of the acquisition - including options (provide cost estimate by year and, for class Justifications, by contract action), and the estimated delivery dates/periods of performance. If commodities are being procured, provide quantities. All contract line items (CLIN) -- e.g., technical data, support equipment, support services, etc. -- should be listed. If all of the ancillary requirements associated with a particular item are not specifically described in the Justifications, those ancillary requirements cannot be included in the resulting contract and would require a second Justification. Also, state the type of appropriation (e.g., 3010, 3400) that will be used to fund each requirement listed.

If approval for more than one fiscal year requirement is needed, give the rationale for this request. Generally, the scope of these actions is limited to current requirements only, so that actions may be taken to facilitate competition for out-year requirements.

In some cases, there are no feasible actions that could develop future competition, and it is reasonable to seek approval for more than one fiscal year's requirements.

For ID/IQ or requirements contracts, use the maximum dollar value of the total estimated orders as the estimated Justification dollar value.

IV. Statutory authority permitting other than full and open competition. ([FAR 6.303-2\(b\)\(4\)](#))

- ☐ DAFFARS 5313.501 - 10 U.S.C. 3572, Implementation of Simplified Acquisition Procedures (41 U.S.C. 1901)
 - ☐ DAFFARS 5313.501 - 10 U.S.C. 3403, Special Emergency Procurement Authority (41 U.S.C. 1903)
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V. Demonstration that the contractor's unique qualifications or nature of the acquisition requires the use of the authority cited above (applicability of authority). ([FAR 6.303-2\(b\)\(5\)](#))

Provide, in narrative form, a detailed explanation supporting and clearly relating to the conditions described by the FAR for using the particular authority cited. This section is normally the most detailed part of the justification as the essence of the justification is presented here. For acquisitions that include both supplies and services, separately justify the use of the authority for the services and supplies.

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Contracting without providing for full and open competition **shall not** be justified on the basis of lack of advance planning by the requiring activity or concerns related to the amount of funds available (e.g., funds will expire) ([10 U.S.C. 3204](#))

VI. Description of efforts made to ensure that offers are solicited from as many potential sources as practicable. ([FAR 6.303-2\(b\)\(6\)](#))

Describe all efforts taken (or to be taken) to ensure that offers are solicited from as many potential sources as practicable under the circumstances. Although Market Research is covered in Section VIII, the information in Section VI should correlate with the Market Research described in Section VI. The following issues should be addressed in this paragraph:

Sources Sought Synopsis (used as part of market research). If a sources sought synopsis was issued, state the date the synopsis was issued and a brief description of its content. If any responses were received, describe in detail the results of the screening process and the rationale for determining the unacceptability of any synopsis respondents. Reference [FAR 13.105](#), Synopsis and Posting Requirements.

Other Actions. In this paragraph, discuss any other actions taken or planned to facilitate competition for **this** acquisition. The discussion should include actions tried or considered even if the actions were unsuccessful. If the efforts were unsuccessful, so state and describe why.

Qualifying Country Sources. If qualifying country sources have expressed interest, but are to be excluded, provide supporting rationale.

VII. Determination by the Contracting Officer that the anticipated cost to the government will be fair and reasonable. ([FAR 6.303-2\(b\)\(7\)](#))

Include a statement by the contracting officer that the anticipated cost will be considered fair and reasonable and provide the basis for this determination. The steps that will be taken to ensure the final contract price will be fair and reasonable are also described here. Describe the extent of cost or price analysis anticipated including the requirements for certified cost or pricing data, technical evaluations, and audits.

VIII. Description of the market research conducted and the results, or explain why market research was not conducted. ([FAR 6.303-2\(b\)\(8\)](#))

Generally, some form of market research should be conducted. Discuss any market research conducted pursuant to [FAR Part 10](#) and describe results of that research. Market research is any effort undertaken to determine if sources capable of satisfying the agency's requirements exist and to determine if commercial items or non-developmental items are either available or can be modified so that they will satisfy the agency's needs. Market research should be focused not only on identifying alternate sources, but also on alternate equipment or substitutes that might fulfill the Government needs with only minor modification. Regardless of the approach used, the results should provide a high level of confidence that no other qualified sources exist.

When other exceptions from the requirement to obtain full and open competition are relied upon, the market research might be limited to an examination of the acquisition history and experience with the marketplace under previous acquisitions for the same or similar items.

If no market research was conducted, so state and provide the rationale.

IX. Any other facts supporting the use of Other Than Full and Open Competition. ([FAR 6.303-2\(b\)\(9\)\(i\)](#))

Provide any other facts supporting the use of other than full and open competition, including an explanation of why technical data packages, specifications, engineering descriptions, statements of work, statements of objectives, or purchase descriptions suitable for full and open competition have not been developed, are not being developed, are not being used, or are not available.

X. List of sources, if any, that expressed interest in the acquisition. ([FAR 6.303-2\(b\)\(10\)](#))

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If a sources sought synopsis was done and all interested sources are included in Section VI, it is acceptable to state, "See Section VI above."

XI. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before making subsequent acquisitions for the supplies or services required. (FAR 6.303-2(b)(11))

*Describe any actions taken or to be taken to foster competition for **future** acquisitions of the supplies or services being acquired. Describe potential actions that could be taken to remove the barriers to competition that have been identified in the justification and include a milestone schedule, where available, for accomplishing these actions. For example, if a follow-on competitive acquisition is planned, so state and provide the planned award date, or state that the Government will attempt to acquire rights in technical data and computer software sufficient to compete follow-on acquisitions as a priced option in the contract action that is the subject of this Justification, or (if applicable) state how the Government intends to challenge nonconforming markings on technical data and computer software delivered to it under previous contracts so those markings can be removed in order that the technical data and computer software may be used in support of a follow-on competitive acquisition, or describe plans to qualify additional sources.*

Address efforts to ensure competition for future spare parts and maintenance in support of systems or equipment covered by the justification, even when these acquisitions will be accomplished by other organizations. Include a discussion on available breakout data.

If no actions are planned, so state and provide reasons. If approval is sought for more than one year, explain why a sole source effort is required for the planned time duration.

For a non-competitive follow-on acquisition to a previous award for the same supply or service supported by a Justification citing the same authority, include a discussion of the actions planned to overcome barriers to competition established in the previous justification, the status of those actions, and the results of those actions. The approval authority shall determine whether the planned actions were completed. If the planned actions were not completed, the justification for the follow-on acquisition shall be approved by the approval authority one-level above the approval authority for the previous justification (see FAR 13.501(a)(2)). If the previous justification was approved by the Senior Procurement Executive (SPE), the approval remains at the SPE level.

[\[DFARS 213.501\(a\)\]](#) and [\[DFARS PGI 206.304\(a\)\(S-70\)\(ii\)\]](#)

XII. Certification by the Contracting Officer. (FAR 6.303-2(b)(12))

As evidenced by his/her signature, the contracting officer has determined this document to be both accurate and complete to the best of his/her knowledge and belief.

XIII. Certification by the technical/requirements personnel. (FAR 6.303-2(c))

As evidenced by their signatures, the technical and/or requirements personnel have certified that any supporting data contained herein, which is their responsibility, is both accurate and complete.
